

Ram Dulare Paswan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 May 2022 · WRIT - C No. - 1963 of 2022 · **Writ disposed; petitioner relegated to clause 6.8 objection with stay of recovery.**

HEADNOTE

A consumer's writ to quash a provisional assessment notice and a tehsildar's recovery citation for electricity dues was disposed without a merits decision. On the licensee's statement, the High Court granted liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, directed time-bound disposal after hearing, and stayed coercive recovery for eight weeks or until the objection was decided, whichever was earlier.

FACTUAL SUMMARY

Ram Dulare Paswan challenged a 3 December 2019 provisional assessment notice issued by the Executive Engineer, Poorvanchal Vidyut Vitran Nigam Ltd., Vidyut Vitran Khand Chauri Chaura, Gorakhpur, and a 31 December 2021 demand citation of the Tehsildar, Sadar, Gorakhpur, seeking recovery of Rs 1,65,207 as electricity dues on an ex parte assessment. After two adjournments, counsel for the distribution licensee stated that the petitioner could file an objection to the demand, to be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment as alternate remedy

HOLDING

Without expressing any opinion on the merits of a challenge to a provisional assessment notice and a subsequent demand citation for recovery of electricity dues, the High Court disposed of the writ, granting liberty to the consumer to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so filed, the distribution licensee is to decide it in accordance with law within the next four weeks after hearing, and no coercive action is to be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 3

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against a provisional assessment notice and recovery citation was disposed by relegating the consumer to a paragraph 6.8 objection, without deciding merits. ¶ 3

assessment-6.8-alternate-remedy Challenge to the 2019 provisional assessment and 2021 recovery citation was left to the statutory 6.8 objection before the licensee. ¶ 3

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed time-bound disposal of a 6.8 objection after hearing and stayed coercive recovery for eight weeks or until that disposal, whichever was earlier. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 3 DECEMBER 2019 PROVISIONAL ASSESSMENT NOTICE AND THE 31 DECEMBER 2021 DEMAND CITATION

The Court expressly declined to express any opinion on the merits. ¶ 3